

HOUSE BILL 1962

By Farmer

AN ACT to amend Tennessee Code Annotated, Title 40,
Chapter 35, relative to probation eligibility.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-35-303(a), is amended by adding the following as a new subdivision:

(3) Notwithstanding subdivision (a)(1), there is a rebuttable presumption that a defendant convicted of aggravated assault under § 39-13-102 is not a favorable candidate for probation if the offense involved the use or display of a firearm during the commission of the offense.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to offenses committed on or after that date.